

SENATE BILL 2108

By White

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 7; Title 8 and Title 9, relative to reporting
regarding persons not lawfully present in the
United States.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 68, Part 1, is amended by adding the following as a new section:

A law enforcement agency shall communicate with local governmental entities and officials to submit quarterly reports to the centralized immigration enforcement division of the department of safety, created in § 4-3-2014, and the appropriate federal official regarding illegal activities, including criminal gang activities and violations of federal immigration laws, of persons who are not lawfully present in the United States. The law enforcement agency shall include in its quarterly reports those persons arrested or otherwise detained for violations of federal immigration laws.

SECTION 2. Tennessee Code Annotated, Section 4-1-425, is amended by adding the following as a new subsection (f) and redesignating existing subsection (f) accordingly:

(f) The department of finance and administration shall report to the governor and the speakers of the senate and house of representatives on or before December 31, 2026, and each December 31 thereafter, the annual cost incurred by this state for public schools, including public higher education institutions, prisons, hospitals, and social services agencies to provide benefits and services to persons not lawfully present in the United States.

SECTION 3. Tennessee Code Annotated, Title 4, Chapter 58, is amended by adding the following as a new section:

(a) A local governmental entity shall report to the centralized immigration enforcement division:

(1) Violations of ordinances and resolutions subject to the imposition of civil penalties by individuals who are not United States citizens or qualified aliens; and

(2) The receipt of public benefits by individuals who are not United States citizens or qualified aliens.

(b) A law enforcement agency, as defined in § 7-68-102, shall report individuals who are not United States citizens or qualified aliens who are charged or convicted of criminal offenses to the centralized immigration enforcement division.

(c) An employee's or official's failure to report in violation of this section is a Class A misdemeanor.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.